NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/08/GB/2022
In CA (CAA) NO. 16/GB/2021

Coram:
Hon'ble Shri Deep Chandra Joshi Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 31.03.2023.

In the matter of:

M/s. Vanashree Properties Pvt. Ltd. & Four others (Transferor Companies)

And

M/s. Prime Holdings Pvt. Ltd. (Transferee Company)

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	NONE	-	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective Learned Counsel (s).

The case is fixed for pronouncement of order.

The Order is pronounced in the open court, Through Video Conferencing vide separate sheet.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)

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Under Section 230-232 of Companies Act, 2013

In the matter of:

1. **Vanashree Properties Private Limited.,** a Private Limited Company incorporated on 30th May, 2008 under the Provisions of the Companies Act, 1956 bearing CIN: U45201AS2008PTC008687 and PAN No.AACCV7844A) and having its registered office at Makum Road, Tinsukia, Assam 786125, India

(Transferor Company No.1)

2. **S.M. Management Private Limited,** a Company incorporated on 28th January,2005 under the provisions of the Companies Act, 1956 bearing CIN: U74140AS2005PTC007642 and PAN No.AAGCSO8063C having its registered office at Makum Road, Tinsukia, Assam 786125, India

(Transferor Company No.2)

3. **Mastermind Shoppers Private Limited,** a Company incorporated on 01st August, 2011 under the provisions of the Companies Act, 1956 bearing CIN: U51909WB2011PTC165678 and PAN No.AAHCM3534B having its registered office at 16A, Shakespeare Sarani, 2nd Floor, New B. K. Market, Kolkata 700071, India

(Transferor Company No.3)

4. **Brijbhumi Merchants Private Limited,** a Company incorporated on 19th July,

2011 under the provisions of the Companies Act, 1956 bearing CIN: U51909WB2011PTC165053 and PAN No.AAECB6242L having its registered office at Makum Road, Tinsukia, Assam 786125, India

(Transferor Company No.4)

5. **Brijbhumi Tradevin Private Limited,** a Company incorporated on 19th July, 2011 under the provisions of the Companies Act, 1956 bearing CIN: U51909WB2011PTC165056 and PAN No.AAECB6243M) having its registered office at 16A, Shakespeare Sarani, 2nd Floor, Kolkata 700071.

(Transferor Company No.5)

AND

1. **Prime Holdings Private Limited,** a Private Limited Company incorporated on 23rd February, 1994 bearing CIN: U70101AS1994PTC004092 and PAN No.AABCP1738Q, having its registered office at Makum Road, Tinsukia, Assam 786125, India

(Transferee Company)

Order delivered on 31.03.2023

O R D E R

[Per: Shri Deep Chandra Joshi, Member (Judicial)]

1. This Company Petition has been filed by the Applicant Companies under Sections 230 to 232 of the Companies Act, 2013, seeking the following reliefs:

i. The Scheme of Amalgamation mentioned in paragraph "1" of this Petition being Annexure "G to the Petition" be sanctioned by this Hon'ble Tribunal with or without modification/s and be declared to be binding on the Transferor Companies and Transferee Company and their members/shareholders and creditors with effect from the appointed date.

ii. Upon the Scheme becoming effective, all the assets, properties, rights, benefits and advantages, liabilities and obligations of the Transferor Companies shall stand transferred to and vest in the Transferee Company and shall become the assets, properties, entitlements, rights, benefits, advantage, liabilities and obligations of the Transferee Company.

iii. The issuance and allotment of shares by the Transferee Company (Petitioner Company No.3) to the shareholders of the Transferor Companies (including the Petitioner Company NO.1 and Petitioner Company No.2) as envisaged in the said Scheme of Amalgamation be allowed and for that, if necessary, to increase the authorized share capital.

iv. The Transferor Companies (including the Petitioner No.1 and Petitioner No.2) be dissolved without winding.

v. Necessary directions may be given for issuance of notices as per the requirement of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 to the following authorities:

a) Central Government through the Regional Director, Guwahati, Ministry of Corporate Affairs;
b) Ministry of Corporate Affairs, Guwahati;
c) Registrar of Companies, Guwahati;
d) Income Tax Authority having jurisdiction where the Petitioner Company is assessed and
e) Reserve Bank of India (RBI), Guwahati;
f) Other authorities, if any, as the Hon'ble Tribunal may deem fit and proper.

Further, provisions of Competition Act, 2002 are not applicable, hence service of Company Petition to Competition Commission of India is not required.

vi. Joint Advertisement/publication detailing Petition including notice of hearing of petition be given in Times of India (Guwahati Edition) in

English and Dainandin Barta (Guwahati Edition) in Vernacular language or any other newspaper as deem fit and proper.

vii. The Transferee Company and Transferor Companies shall file certified copy of the NCLT order sanctioning the Scheme of Amalgamation with the Registrar of Companies, Guwahati.

viii. Liberty be reserved to the Transferor and Transferee Companies and all other persons interested in this Petition to apply to this Hon'ble Tribunal as and when occasion may arise for any direction that may be necessary.

ix. Directions be given for any other matter for giving full effect to the said Scheme of Amalgamation.

x. Such or other order or orders be made and/or directions be given as to this Hon'ble Tribunal may deem fit and proper.

2. The registered offices of the Transferor Company No. 3, 4 and 5 are situated in the State of West Bengal and under the jurisdiction of NCLT Kolkata and the Transferor Company No. 1 and 2 and the Transferee Company are situated in the State of Assam, within the jurisdiction of this Bench.

3. From the records, it is seen that the first motion application seeking various directions was filed before this Tribunal vide CA (CAA) No. 16/GB/2022 and based on such joint application moved under Section 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of Equity Shareholders, Secured and Unsecured Creditors of the Transferor Company No. 1 and 2 and the Transferee Company was dispensed with vide Order dated 24.03.2022.

4. The Hon'ble NCLT, Kolkata Bench vide its order dated 11th February, 2022 allowed the dispensation of meeting of Shareholders and Creditors of the Transferor Companies 3 to 5 in CA (CAA) No. 209/KB/2021.

5. The Petitioner submits that:

5.1. Pursuant to the order passed by the Hon'ble Guwahati Bench of the Tribunal dated, 24th March, 2022 in Company Application No**. C.A. (CAA)/16/GB/2021** and pursuant to the order passed by the Hon'ble Kolkata Bench dated 11th February, 2022 in **C.A. (CAA)/209/KB/2021,** the petitioner companies have sent the Notice to different Authorities in Form CAA 3 as per the respective directions of the Hon'ble NCLT Kolkata and Hon'ble NCLT Guwahati Bench.

6. Thereafter, the Petitioner Companies filed a second motion joint petition before this Tribunal within the time prescribed under law.

7. Now this Petition is coming up for approval of the scheme as well as for other consequential directions in terms of the provisions of Section 230-232 of the Companies Act, 2013 read with the attendant Rules, i.e., Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 and it is now hereby ordered as follows:

i. The date of hearing of the Petition filed by the Petitioner Companies for the approval of the Scheme is fixed on **15.06.2023**.

ii. The Regional Director, North Eastern Region, Ministry of Corporate Affairs at Guwahati have submitted its report dated 24.11.2022, making certain observations, the Petitioner Companies are hereby directed to comply with the same.

iii. Notice of the hearing shall be advertised in two Newspapers- "Times of India" in English (Guwahati Edition) and "Dainandin Barta" (Guwahati Edition) in Vernacular language, having wide circulation in Assam, not less than thirty days before the aforesaid date fixed for the hearing.

iv. In addition to the above public notices, the Petitioner Company shall serve the notice of the Petition on the following Authorities, namely, Income Tax Authorities Concerned (indicating the respective PAN Nos.), ROC NER Guwahati, Official Liquidator and Regional Director as well as other Sectoral Regulators or authorities, Reserve Bank of

India (Guwahati) which may govern the working of the Company in the Scheme, at least thirty days before the date fixed for hearing of the above Petition.

v. Further, notices shall also be served to Objector(s) or the representative(s) as contemplated under Sub-section (4) of Section 230 of the Companies Act, 2013 who may have made representations and who have desired to be heard directly or through their representatives, along with a copy of the Petition and the extracts filed therewith, at least fifteen days before the date fixed for hearing.

vi. The Petitioner Companies shall, at least seven days before the date of hearing of the Petition, file an affidavit of service concerning said publication effected as well as service of notice on the authorities mentioned above including the Sectoral Regulator(s) as well as to Objectors, if any.

vii. Objections, if any, to the Scheme, contemplated by the Authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which it may be considered by this Tribunal that there is no objection on the part of the Authorities to the approval of the Scheme, by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and Regulations/Rules framed thereunder.

viii. The Petitioner Companies shall comply with the proviso to Sub-Section (7) of Section 230 as may be applicable under the circumstances on or before the date fixed for hearing by filing a certificate of the Companies' Auditor.

8. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)